

leave to file the SACC, it was not filed in conformity with the law and is subject to being struck from the record on the Court’s own motion. (See § 436.)

However, the Court notes the possibility, if not likelihood, that the SACC contains amendments aimed at addressing the deficiencies urged by Cross-Defendants through the Demurrer and Motion to Strike. While Cross-Defendants, through the Reply, urge the Court to strike the SACC, they do not suggest, let alone substantiate with reference to the FACC and SACC, that the amendments in the SACC are unrelated to the issues raised on the present Demurrer and Motion to Strike. Moreover, based on the nature of the Demurrer and Motion to Strike and the allegations of the FACC, *if* the Court were to sustain the Demurrer or grant the Motion, it would do so with leave to amend. Striking the SACC, only to grant Nguyen leave to refile it, would be a waste of judicial, as well as party, resources.

That said, it is neither Cross-Defendants’ nor the Court’s responsibility to compare the SACC with the FACC to determine the nature of the amendments. The Court therefore orders Nguyen to serve and file, no later than August 12, 2026:

- 1) A Memorandum that “[s]tate[s] what allegations in the previous pleading are . . . deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and . . . [s]tate[s] what allegations are . . . added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal Rules of Court, rule 3.1324(a).) and
- 2) A Declaration specifying:
 - a. The effect of the amendment;
 - b. Why the amendment is necessary and proper; and,
 - c. Whether and to what extent the amendment addresses issues raised in Cross-Defendants’ Demurrer and Motion to Strike. (*Id.* at rule 3.1324(b).)

If the SACC reflects a *good faith effort* by Nguyen to address the deficiencies urged by Cross-Defendants through the Demurrer and Motion, even if Cross-Defendants believe that it does not adequately address those deficiencies, the Court will be inclined to permit it to remain the operative cross-complaint, grant Cross-Defendants additional time to respond thereto, and find the present Demurrer and Motion MOOT. However, if the amendments to the SACC are not limited to attempts to cure deficiencies asserted through the Demurrer and Motion, the Court will be inclined to strike it and consider the Demurrer and Motion.

Cross-Defendants are granted leave to serve and file, no later than August 19, 2026, a Sur-Reply of no more than 12 pages. If Cross-Defendants consent to the filing of the SACC, the Sur-Reply shall so state. If Cross-Defendants continue to oppose the filing of the SACC, the Sur-Reply shall explain Cross-Defendants’ continuing opposition in light of the foregoing.

.....
Tifnique Garrison v. Store Storage

26CV000996

DEFENDANT STORE MANAGEMENT, LLC’S DEMURRER TO COMPLAINT

TENTATIVE RULING: The demurrer appears to be MOOT. “A party may amend its pleading once without leave of the court at any time . . . after a demurrer . . . is filed but before the demurrer . . . is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer . . .” (Code Civ. Proc., § 472, subd. (a).)

Plaintiff filed a First Amended Complaint (FAC) prior to the date on which an opposition to the present demurrer was due. There is no proof of service of the FAC appearing in the Court’s file. Presuming, however, that the FAC was timely served, the issues raised by the present demurrer are MOOT.

.....

Jose Guadalupe Valdes Flores v. Cruz Angel Castro et al

26CV001090

DEFENDANTS POSITIVE INVESTMENTS, INC.; PRIME A INVESTMENTS-VICTORVILLE, LLC; AND PI PROPERTIES 113 PARTNERS, LLC’S MOTION TO STRIKE PLAINTIFF JOSE GUADALUPE VALDES FLORES’ PRAYER FOR PUNITIVE DAMAGES

TENTATIVE RULING: The motion is DENIED. Entity Defendants (defined below), and each of them, are granted 10 calendar days’ leave to file an Answer to the Complaint.

Defendants Positive Investments, Inc. (PI); Prime A Investments-Victorville, LLC (PRIME A); and PI Properties 113 Partners, LLC (PIP-113, and collectively as Entity Defendants) move, pursuant to Code of Civil Procedure sections 435.5 and 438 for an order striking from Plaintiff’s Complaint in the action: (1) the prayer for punitive damages; (2) certain allegations relating thereto in paragraphs 6, 52, 64, and 66; and (3) paragraph 49 in its entirety.

Entity Defendants’ Request for Judicial Notice is GRANTED. The Court takes judicial notice of the Complaint filed in this action, but not for the truth of any matter alleged therein.

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at §437, subd. (a).) In ruling on a motion to strike, the Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.)

“The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.)

However, “[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) As such, in ruling on a motion to strike the Court is required to assume